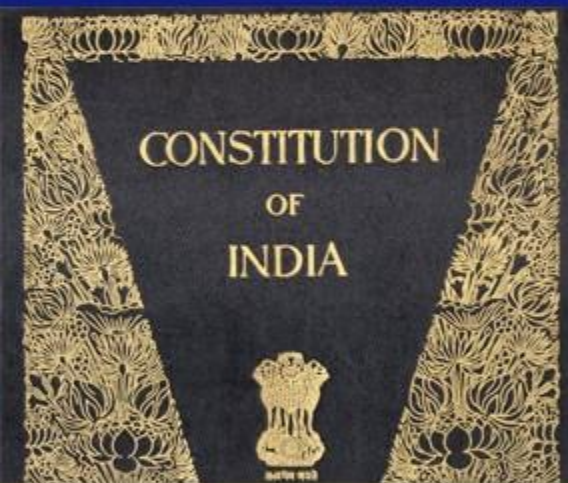


INDIAN POLITY



MODULE - 16

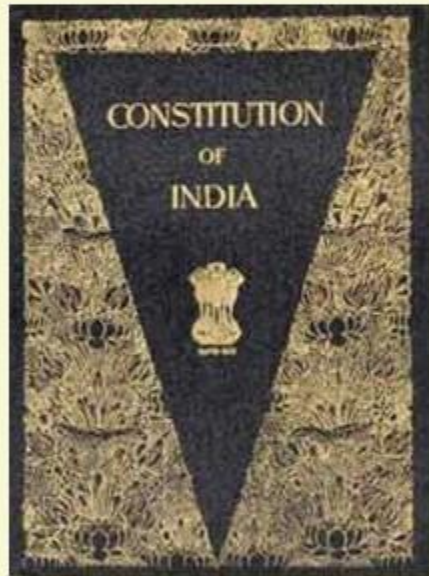
THE PREAMBLE

- INGREDIENTS OF PREAMBLE
- DIRECT DEMOCRACY

CHAPTER 4



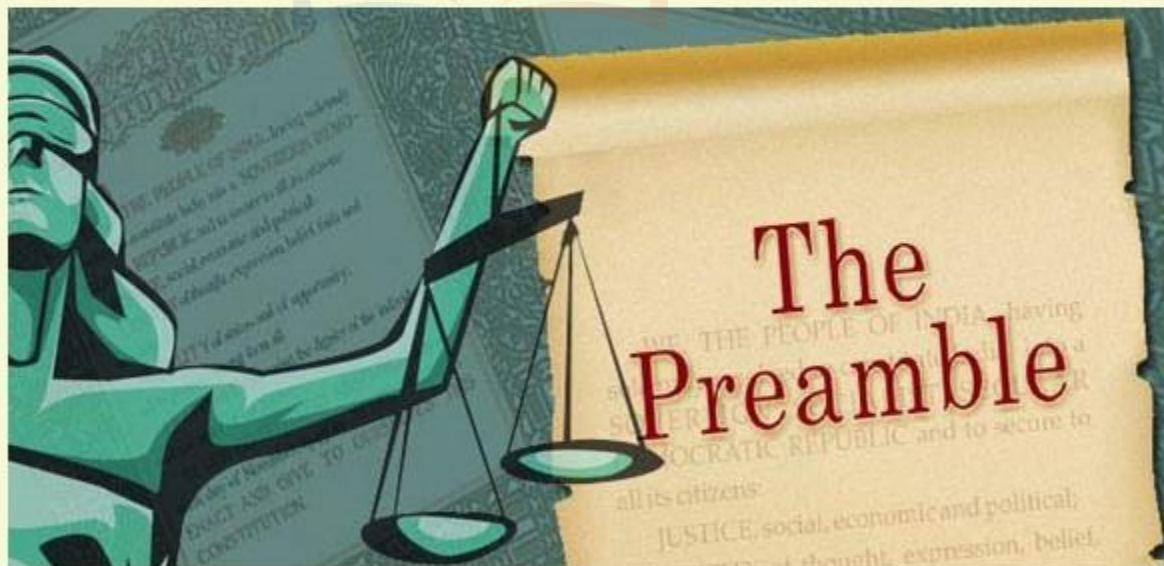
Learning Space



**PREAMBLE OF THE
CONSTITUTION**

WHAT DO YOU MEAN BY PREAMBLE?

- 1 A Preamble is an introductory and explanatory statement in a document that explains the document's purpose and underline philosophy.



- 2 The Preamble of the Indian Constitution contains the summary or essence of the Constitution.
- 3 It has been called as the Political Horoscope of the Indian Constitution by K.M.Munshi, Soul of the Constitution by Thakurdas Bhargav and Identity Card of the Constitution by N.A.Palkhiwala.

INGREDIENTS OF THE PREAMBLE



The preamble reveals four ingredients:

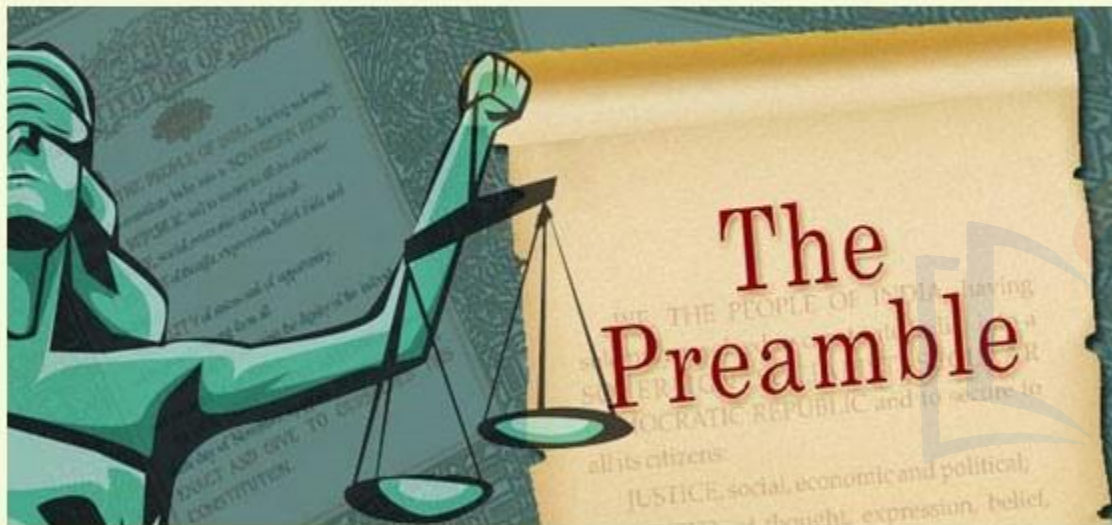
- **Source of Authority of the Constitution-** The Preamble states that the Constitution derives its authority from people of India.
- **Nature of Indian State-** It declares India to be of sovereign, socialist, secular, democratic and republican polity.
- **Objectives of the Constitution-** It specifies justice, liberty, equality and fraternity as the objectives.
- **Date of Adoption of the Constitution-** It stipulates November 26, 1949 as the date of adoption.

HISTORY OF THE PREAMBLE



- 1** It is interesting to know that the Preamble though the Constitution opens with it, was not the first to come in existence.
- 2** It was the last piece of drafting adopted by the Constituent Assembly at the end of the first reading of the Constitution.
- 3** The Preamble is based on the Objectives Resolution drafted and moved by Nehru.
- 4** The motion that the Preamble stands as a part of the Constitution was adopted on November 02, 1946.

THE PURPOSE OF PREAMBLE

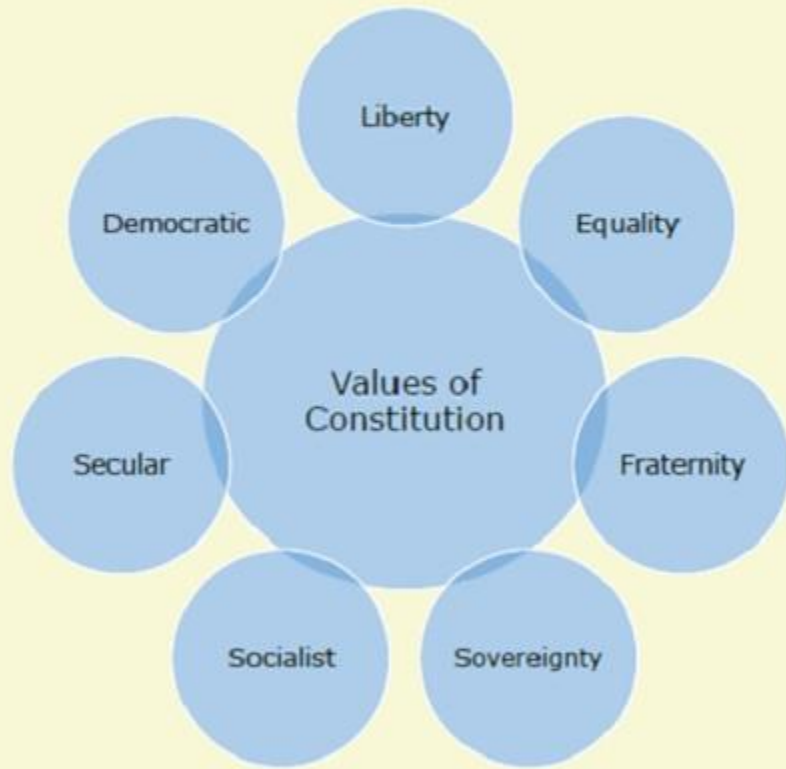


- 1 The Preamble serves two basic purposes:
 - 1) It talks about the source of the Constitution.
 - 2) It spells out the basic philosophy and the objective which Constitution seeks.

- 2 The Preamble in brief explains the objectives of the Constitution in two ways:
 - About the structure of the Governance and
 - about the ideals to be achieved in independent India.

It is because of this the preamble is considered to be the soul of the Constitution.

THE OBJECTIVES OF PREAMBLE



- 1** The objectives which are laid down in the Preamble are:
 - 1) Description of Indian state as Sovereign, socialist, secular, Democratic and Republic.
 - 2) Provisions to all the citizens of India
 - a) Justice- Social Economic and Political.
 - b) Liberty of thought, expression, belief, faith and worship.
 - c) Equality of status and opportunity.
 - d) Fraternity assuring dignity of the individual and unity and integrity of the nation.

WE, THE PEOPLE OF THE INDIA!

**1**

- It is the resolve of people that India must be constituted into a sovereign, democratic, republic.
- From the Preamble of the Constitution, it is clear that the framers attached importance to the sovereignty of the people.
- Their ideas reassert the sovereignty and the paramountcy of the people's will over everything else.
- The idea of republic indicates the representative character of its sovereign democracy.
- It means the absolute power vested in the people of India, under the Constitution, is exercised by them through their duly elected representative in the various legislatures.

KEY WORDS IN THE PREAMBLE

1

SOCIALIST



India chose mixed economy

1

The word Socialist was not there in the Preamble of the Constitution in its original form in 1976. The 42nd Amendment Act added and incorporated the term socialist in the Preamble.

2

The word socialism had been used in the context of economic planning. It also means commitment to attain ideals like removal of inequalities, provision of minimum basic necessities to all, equal pay for equal work.

KEY WORDS IN THE PREAMBLE

1

SOCIALIST

3

The Directive Principles Article 39 B and Article 39 C of the Constitution are Charters of the Social and Economic Liberties of the people.



4

The word Socialism, however, has no definite meaning in our Constitution. Generally, the word implies the System of Government in which the means of production is wholly or partially controlled by the State.

5

India's Socialism is a Democratic Socialism, not a Communistic Socialism. For this purpose the Preamble has combined both the words Socialism and Democracy in the Preamble.

KEY WORDS IN THE PREAMBLE

1

SOCIALIST



Blend of Marxism & Gandhism

6

This combination of words Socialism and Democracy have been criticized by many writers. It was said that they both cannot co-exist.

7

However, Indian Socialism is a blend of Marxism and Gandhism and we intend to establish the idea of Welfare State through our concept of Socialism.

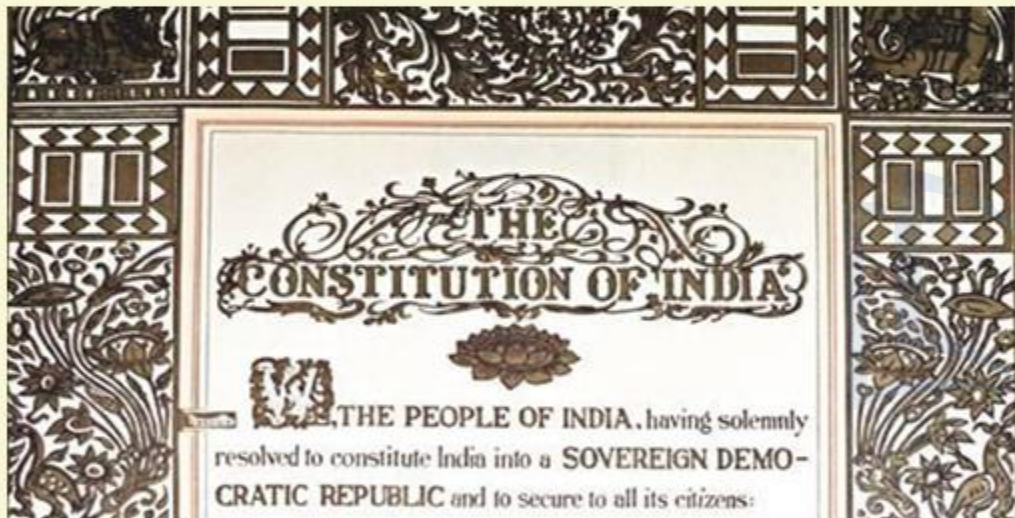
8

By Welfare State we meant to prevent the excess of exploitation and excess of free competition without destroying individual initiative. Thus, our Socialism has heavily leans towards Gandhian Socialism.

KEY WORDS IN THE PREAMBLE

2

SOVEREIGNTY



1

It is one of the foremost elements of the Independent State. It means absolute independence that is a Government which is not controlled by any other power internally or externally.

2

India is free from external control, frame its own policies and thus we are said to be a Sovereign State.

KEY WORDS IN THE PREAMBLE

3

SECULARISM



1

The term Secular too was added by the 42nd Constitutional Amendment Act. Accordingly, Article 25 to 28 guaranteed the fundamental right to freedom of religion.

2

The Indian Constitution embodies the positive concept of Secularism that is all religions in our country have the same status and support from the State.

3

Secularism of India eliminates God from the matters of the State and ensures that no one shall be discriminated against on the ground of religion.

Secularism of India is not anti-God. It treats alike the devout, the agnostic and the atheist on the same lines.

KEY WORDS IN THE PREAMBLE

4

DEMOCRATIC



- 1** We are Democratic Polity and this is based on the doctrine of popular sovereignty i.e. possession of Supreme power by the people.
- 2** Democracy is of two types Direct and Indirect.
- 3** In direct democracy, the people exercise their power directly as is the case in Switzerland.

KEY WORDS IN THE PREAMBLE

4

DEMOCRATIC



— PARLIAMENT OF INDIA —

4

There are four devices of direct democracy, namely, **Referendum**, **Initiative**, **Recall** and **Plebiscite**.

5

In indirect democracy, on the other hand, the representatives elected by the people exercise the supreme power and thus carry on the government and make the laws. This type of democracy, also known as representative democracy, is of two kinds_ parliamentary and presidential.

KEY WORDS IN THE PREAMBLE

4

DEMOCRATIC



6

The Indian Constitution provides for representative Parliamentary Democracy under which the executive is responsible to legislature for all its policies

7

Universal Adult Franchise, Periodic Elections, Rule of Law, Independence of Judiciary and Absence of discrimination on certain grounds are the manifestations of the democratic character of the Indian Polity.

8

The term Democratic is used in the Preamble embracing not only political democracy but also Social and Economic Democracy.

TYPES OF DIRECT DEMOCRACY

1

REFERENDUM



- Literally, the term “Referendum” means “refer to”.
- It is a device whereby the public opinion or verdict can be ascertained by a direct reference to the people.
- It is a process through which the verdict of a people is sought on any ordinary or constitutional law passed by the legislature of the state.
- Referendum is a device whereby the electorate may veto an act which a legislative body has already passed.
- It gives to the people the final power to decide the fate of the laws passed by the legislature.

TYPES OF DIRECT DEMOCRACY

2

INITIATIVE



- Initiative is the second modern device of Direct Democracy.
- It is a **positive device** by which people have the **right to initiate measures for legislation**.
- Under it, people can submit either a bill or a demand for law-making.
- The **legislature has to then compulsorily deliberate upon the measure** and give its decision.
- In simple words, initiative means the right of the people to submit bills for legislation.
- Initiative is thus the positive power in the hands of the people by which they can get passed the laws of their choice and need.

TYPES OF DIRECT DEMOCRACY

3

RECALL

RIGHT TO RECALL



- Recall is the third popular device of Direct Democracy.
- It means the power of the people to **recall** their **representatives** or **legislators** who may not be acting according to dictates of public opinion or who may be misusing their **authority** as the representatives of the people.
- Where Recall prevails, the voters possess the right to call back any elected officer or representative who fails to carry out his duties faithfully.

TYPES OF DIRECT DEMOCRACY

4

PLEBISCITE



- The term 'plebiscite' is of French origin.
- It means, "An appeal to the suffrage of the people".
- Latin word 'Plebiscitum' which means **decree (scitum) of the people (plebis)** also constitute a source of the term of Plebiscitum.
- Plebiscite, as such, means the device **for knowing public opinion on any issue or problem or policy.**
- It is generally used to **solve the territorial disputes.**
- It means to know the wish of the people over any particular issue or decision.
- The verdict is then used by the government as the basis for policy formulation on that issue.

TYPES OF DIRECT DEMOCRACY



WHY IS IT IN NEWS?

- Referendums have been in the news lately.
- Iraqi Kurdistan independence referendum held on September 25, 2017.
- The Catalanian one was held on October 1.

QUESTION

Consider the following statements with reference to Right to Recall?

1. Recall is basically a process whereby the electorate has the power to remove the elected officials but only after the end of half of the term.
2. In India Right to recall doesn't exist anywhere at all.

Which of the above is / are correct?

- | | |
|---------------|--------------------|
| a) 1 only | b) 2 only |
| c) both 1 & 2 | d) neither 1 nor 2 |

Answer: D



EXPLANATION

- The right to recall exists in local body elections in some states in India.
- The Right to Recall under section 19 of Punjab Panchayat Act, 1994, enables Panchs (elected members) to remove a sarpanch by moving a no-confidence motion.
- Madhya Pradesh amended the MP Municipal Corporation Act 1956 and the MP Municipalities and Nagar Panchayats Act 1961 to introduce the right to recall mayors and chairpersons in 2000.
- In Chhattisgarh, a no-confidence motion can be initiated against a president or corporator provided the municipal body has completed two years of existence and three-fourths of members write to the district collector saying they have lost confidence in the candidate. The State Election Commission can then order a recall election.

WE EXPRESS OUR SINCERE THANKS FOR VIEWING THIS VIDEO

Presented by



Learning Space

For Suggestions:

suggestions@learningspace.in

To Contact us:

info@learningspace.in

OUR TEAM

G. V. Rao
K. Srikanth
D. Sunil Kumar
L. V. Krishna
Y. Deepthi

Amrita Naidu
M. Binukrishna
G. Ravi Babu
D. Joji
K. Victor Babu

Visit us at:

www.learningspacedigital.com

0 8 6 6 -2 4 4 4 4 7 2
0 9 8 4 9 9 4 2 2 9 9